

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: _____

-----X
IVAN ROBLES,

Date filed: November 3, 2020

Plaintiff,

Plaintiff designates
BRONX
County as the place of trial

-against-

The basis of venue is
Place of OccurrenceTHE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. DONALD SEHL,
Shield No. 2712, P.O. "JOHN" GREEN, first name
being fictitious as it is presently unknown, P.O.
ROSTISLA KIPERVASER and P.O. "JOHN DOES
1-8", whose names being fictitious, the true names
unknown to plaintiff, the persons being NYPD
employees,**SUMMONS**Plaintiff resides at:
535 East 142nd Street, Apt. 6A
Bronx, New York 10454

Defendants.

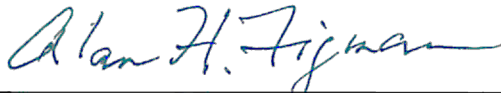
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
November 3, 2020

Yours, etc.

ALAN H. FIGMAN, PLLC

By: 

ALAN H. FIGMAN

Attorney for Plaintiff
IVAN ROBLES

Office and P.O. Address
150 Broadway, Suite 712
New York, New York 10038
212.804.5777

Defendants' Addresses:

**COMPTROLLER OF THE CITY OF NEW YORK,
One Centre Street, New York, New York 10007**

NEW YORK CITY POLICE DEPARTMENT, One Police Plaza, New York, New York 10007

P.O. DONALD SEHL, 40th Precinct, 275 Alexander Avenue, Bronx, New York 10454

P.O. "JOHN" GREEN, 40th Precinct, 275 Alexander Avenue, Bronx, New York 10454

P.O. ROSTISLA KIPERVASER, 40th Precinct, 275 Alexander Avenue, Bronx, New York 10454

**P.O. "JOHN DOES 1-8", 40th Precinct, 275 Alexander Avenue, Bronx, New York 10454
and/or One Police Plaza, New York, New York 10007**

Upon your failure to appear, judgment will be taken against you by plaintiff in a sum of money exceeding the monetary jurisdictional limits of all lower Courts, with interest from March 21, 2019, together with the costs and disbursements of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
IVAN ROBLES,

Plaintiff,

Index No.: _____

-against-

Date Filed: November 3, 2020

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. DONALD SEHL,
Shield No. 2712, P.O. "JOHN" GREEN, first name
being fictitious as it is presently unknown, P.O.
ROSTISLA KIPERVASER and P.O. "JOHN DOES
1-8", whose names being fictitious, the true names
unknown to plaintiff, the persons being NYPD
employees,

VERIFIED COMPLAINT

Defendants.

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Plaintiff IVAN ROBLES, by his attorney, ALAN H. FIGMAN, PLLC, as and for his
Verified Complaint, alleges as follows, upon information and belief:

1. Plaintiff IVAN ROBLES resides at 535 East 142nd Street, Apt. 6A, Bronx, New York 10454.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK (hereinafter "CITY") was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant CITY, its agents, servants and/or employees, operated, maintained and controlled defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"), including all police officers thereof.
4. At all times hereinafter mentioned, defendant P.O. DONALD SEHL, Shield No. 2712 (hereinafter referred to as "SEHL") was an agent, servant and/or employee of defendant

CITY and is being sued individually and in his official capacity.

5. At all times hereinafter mentioned, defendant SEHL was acting during the course of his employment by defendant NYPD and/or CITY, and within the scope of his employment as a police officer with the NYPD and/or CITY.

6. At all times hereinafter mentioned, defendant SEHL was acting under color of law and authority as a police officer employed by defendant CITY and/or the NYPD.

7. At all times hereinafter mentioned, defendant P.O. "JOHN" GREEN, first name being fictitious as it is presently unknown, (hereinafter referred to as "GREEN") was an agent, servant and/or employee of defendant CITY and is being sued individually and in his official capacity.

8. At all times hereinafter mentioned, defendant GREEN was acting during the course of his employment by defendant NYPD and/or CITY, and within the scope of his employment as a police officer with the NYPD and/or CITY.

9. At all times hereinafter mentioned, defendant GREEN was acting under color of law and authority as a police officer employed by defendant CITY and/or the NYPD.

10. At all times hereinafter mentioned, defendant P.O. ROSTISLA KIPERVASER (hereinafter referred to as "KIPERVASER") was an agent, servant and/or employee of defendant CITY and is being sued individually and in her official capacity.

11. At all times hereinafter mentioned, defendant KIPERVASER was acting during the course of her employment by defendant NYPD and/or CITY, and within the scope of her employment as a police officer with the NYPD and/or CITY.

12. At all times hereinafter mentioned, defendant KIPERVASER was acting under

color of law and authority as a police officer employed by defendant CITY and/or the NYPD.

13. At all times hereinafter mentioned, defendants P.O. "JOHN DOES 1-8", names being fictitious as they are presently unknown, (hereinafter referred to as "JOHN DOES 1-8") were agents, servants and/or employees of defendant CITY and are being sued individually and in their official capacities.

14. At all times hereinafter mentioned, defendants JOHN DOES 1-8 were acting during the course of their employment by defendant NYPD and/or CITY, and within the scope of their employment as police officers with the NYPD and/or CITY.

15. At all times hereinafter mentioned, defendants JOHN DOES 1-8 were acting under color of law and authority as police officers employed by defendant CITY and/or the NYPD.

16. That plaintiff IVAN ROBLES has complied with all of the conditions precedent to the bringing of this action, and in particular, had on October 30, 2020, and within 90 days after his causes of action accrued, duly served defendant CITY with a Notice of Claim and Intention to Sue in accordance with Executive Orders 202.8, 202.14, 202.28, 202.48, 202.55, 202.60 and 202.67.

17. That plaintiff remains ready, willing and able to submit to an oral examination pursuant to General Municipal Law § 50h.

18. No pre-suit physician examination(s) of plaintiff herein has been requested to date.

19. That this action is filed within one (1) year and ninety (90) days from the date of the occurrence complained of herein.

STATEMENT OF FACTUAL ALLEGATIONS:

20. On March 21, 2019, at approximately 6:00 a.m., at the home of plaintiff IVAN ROBLES, located at 535 East 142nd Street, Apt. 6A, Bronx, New York 10454, members of the NYPD, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, unlawfully and without probable cause, forcefully entered and invaded the aforesaid premises, violently attacking, and brutally assaulting and battering plaintiff.

21. Plaintiff IVAN ROBLES was handcuffed in a manner that cut off circulation in his hands and wrists.

22. Plaintiff IVAN ROBLES forced to put on his shoes despite the fact that his left great toe had clearly been fractured during the attack.

23. Plaintiff IVAN ROBLES was falsely arrested and detained, handcuffed, and was driven around the Bronx for approximately two (2) hours in a police van.

24. Plaintiff IVAN ROBLES was denied medical treatment for his injuries, and was brought against his will to the 40th Precinct and then to Bronx Central Booking, where said unlawful, illegal and false arrest, imprisonment and detention continued until plaintiff was released from custody.

25. Thereafter, plaintiff IVAN ROBLES was maliciously prosecuted until March 9, 2020, when all charges against him were dismissed and sealed.

26. This incident resulted in serious personal injuries to said plaintiff, as set forth herein, as a result of the negligent, grossly negligent, intentional, careless, and reckless conduct of defendants CITY and NYPD, their agents, servants and/or employees, the above listed police

officers, as well as other detectives and/or police officers working out of the 40th Precinct and/or the Emergency Service Unit and/or the Special Narcotics Unit of the NYPD, and other affiliate agencies and departments of defendants, and those acting under the direction, behest, permission and control, and in the general operation, supervision, governance and maintenance of the NYPD, including, but not limited to, the following acts and omissions: failure to properly train and re-train officers in the execution of search and/or arrest warrants; failure to supervise, train and instruct officers to be diligent in obtaining ongoing knowledge and information in regard to the presence and/or existence or lack thereof of contraband in a premises; failure to have a legal and lawful search warrant prior to invading and searching plaintiff's residence; failure to adequately and properly train and re-train officers in the performance of their duties prior to carrying out the execution of search warrants; failure to schedule and perform adequate training exercises relative to the entry of premises; failure to properly supervise; failure to properly screen and hire; failure to discipline, train and re-train; failure to maintain an effective system of discipline and re-training for police officers; negligent hiring and retention; negligent supervision and training; failure to engage in proper police conduct; intentionally engaging in improper police conduct; failure to respect the rights of the citizenry; engaging in a pattern of conduct designed to harass, intimidate and instill fear in the citizenry; in assaulting plaintiff and/or in causing, permitting and allowing plaintiff to be assaulted; in using excessive force; in failing to follow proper police procedures when entering a premises; in violating police protocols and procedures; in deviating and departing from accepted and proper police policies, protocols, procedures and mandated operations; in exhibiting a callous, grossly negligent, and wanton disregard for the health, welfare and benefit of the community at large and particularly, the plaintiff herein; in causing intentional and negligent

infliction of physical and emotional harm and distress; in engaging in racial profiling and in violating the civil, constitutional and human rights of plaintiff, as afore-described; among other acts and/or omissions.

27. Plaintiff IVAN ROBLES has suffered, all without any fault or lack of care on his part contributing thereto, serious personal and emotional injuries, all of a continuing, lasting and permanent nature, including, but not limited to, a severely fractured great toe, deformity of said digit, inability to walk, necessity for surgery, inability to perform his usual vocational and avocational activities, human bites causing bloody punctures of the skin of his abdomen, deprivation of freedom for a lengthy period of time, suffered severe physical and emotional trauma and injury, was subjected to great fear and terror and personal humiliation and degradation, embarrassment to be handcuffed in front of his family, neighbors and young children; and has continued to suffer from physical, mental and emotional trauma and distress as a result of the aforesaid unlawful conduct of the above detectives and/or police officers, NYPD and CITY, and has been caused to fear repetition of said unlawful conduct by the aforesaid and/or other agents of the CITY and NYPD.

AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT:

28. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

29. At the aforesaid time and place, plaintiff was assaulted, battered and beaten by the defendants named herein, their agents, servants and/or employees, without any fault, lack of care, or provocation on his part, sustaining the damages and injuries afore described.

30. That by reason of the foregoing, plaintiff IVAN ROBLES has been caused to sustain serious personal injuries, all to his damage in a sum of money exceeding the monetary

jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION:
ASSAULT AND BATTERY**

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

32. Plaintiff had an interest in freedom from the apprehension of a harmful or offensive contact (and from actual offensive contact).

33. Since the conduct of defendants caused plaintiff to anticipate a harmful or offensive contact, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 are liable to plaintiff for the tort of assault, as well as defendant CITY, their employer, for whom the CITY is vicariously liable.

34. Since defendants also made harmful or offensive contact with plaintiff, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 are liable to plaintiff for the tort of battery, as well as defendant CITY, their employer, for whom the CITY is vicariously liable.

35. Each of the aforementioned defendants is liable personally and in their official capacity for these acts which damaged plaintiff.

36. Defendant CITY is liable for the wrongful acts and omissions of its agents, servants, and/or employees under the Doctrine of *Respondeat Superior*.

37. By reason of the foregoing, plaintiff was caused to sustain serious and severe personal injuries of a permanent and lasting nature.

38. As a result of the foregoing, plaintiff has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION:
FALSE ARREST**

39. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

40. Plaintiff IVAN ROBLES was falsely arrested, detained and incarcerated at the 40th Precinct, and then at Central Booking in the Bronx.

41. As a result of the foregoing, plaintiff IVAN ROBLES was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, was placed in fear of his life and well-being, was sleep deprived, denied edible food and drink, taunted and harassed, and suffered anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

42. As a result of the foregoing, plaintiff IVAN ROBLES has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION:
WRONGFUL DETAINMENT AND IMPRISONMENT**

43. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

44. On March 21, 2019, at approximately 6:00 a.m., defendants CITY and NYPD, through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, did wrongfully detain and imprison plaintiff IVAN ROBLES without probable cause, without an arrest warrant, in bad faith, and without his permission or consent.

45. In commencing and continuing said wrongful detainment and imprisonment,

defendants caused plaintiff to be wrongfully detained in violation of the Penal Laws of the State of New York and his constitutional rights, during which time plaintiff was handcuffed with excessive force and pressure, was denied edible food and drink, was denied medical care and treatment, was sleep deprived, taunted, harassed and placed in fear of his well-being and life, having been placed in cells with violent felons, and was kept incarcerated against his will and all without just or probable cause.

46. Plaintiff IVAN ROBLES had not given defendants probable cause to believe that he had committed any illegal acts.

47. At the time of said plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was unlawful, false and without justification.

48. Defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, as well as other agents, servants and/or employees of defendants CITY and/or NYPD, acted in bad faith and without justification in committing the detention and unlawful imprisonment of plaintiff.

49. As a result of the foregoing, plaintiff was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

50. As a result of the foregoing, plaintiff IVAN ROBLES has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION:
MAILICIOUS PROSECUTION**

51. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

52. That following his arrest, plaintiff IVAN ROBLES was wrongfully, falsely and maliciously charged by defendants CITY, NYPD, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, and was prosecuted for offenses he had not committed.

53. That subsequent to plaintiff IVAN ROBLES's arrest, defendants did maliciously cause a criminal prosecution to be commenced against him in the Bronx Criminal Court.

54. In commencing and continuing the said malicious prosecution, defendants caused plaintiff IVAN ROBLES to be falsely charged with acts in violation of the Penal Law of the State of New York.

55. Plaintiff had not committed or attempted to commit any illegal act.

56. Plaintiff had not given defendant CITY, its agents, servants and/or employees, including the individual defendants named herein, cause to believe that he had committed the illegal acts of which he was accused, charged and prosecuted.

57. Defendants knew, or should have known, through the exercise of proper police procedure and reasonable care, that said investigation was false, flawed and incomplete.

58. Defendants willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

59. Defendants coerced, unduly influenced and otherwise convinced witnesses to falsely identify plaintiff as having violated the Penal Law of the State of New York.

60. That all criminal charges against plaintiff were dismissed on March 9, 2020.

61. As a result of the aforementioned malicious prosecution, plaintiff suffered and continues to suffer substantial damages.

62. As a result of the foregoing, plaintiff was caused to suffer personal injuries,

violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

63. That by virtue of the aforementioned acts, defendants are liable to plaintiff for malicious prosecution.

64. Said acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. Defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants and/or employees, including, but not limited to, the defendants herein named, under the Doctrine of *Respondeat Superior*.

66. By reason of the foregoing, plaintiff IVAN ROBLES has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION
NEGLIGENCE**

67. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

68. On March 21, 2019, at approximately 6:00 a.m., at the aforesaid location, defendants CITY and NYPD, by their agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, unlawfully and without just reason or probable cause, and without a properly obtained warrant, right or privilege, detained plaintiff IVAN ROBLES, all without plaintiff's permission or consent, and arrested him and caused him to be incarcerated and maliciously prosecuted.

69. Defendants CITY and NYPD, by and through their agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, negligently and carelessly performed their duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

70. As a result of defendants' negligence, plaintiff was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage of his reputation and standing within his community.

71. As a result of the defendants' negligence, plaintiff IVAN ROBLES has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS**

72. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

73. Defendants CITY and NYPD hired and retained in their employ certain agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, with knowledge that said police officers lacked the experience to be employed by defendants and therefore, were unfit to be police officers.

74. Defendants CITY and NYPD, hired and retained in their employ certain agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, with knowledge that said police officers lacked the

deportment to be employed by defendants and therefore, were unfit to be police officers.

75. Defendants CITY and NYPD hired and retained in their employ certain agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, with knowledge that said police officers had vicious and/or undesirable propensities and were, therefore unfit to be police officers.

76. As a result of the foregoing, plaintiff IVAN ROBLES was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

77. As a result of the foregoing, plaintiff IVAN ROBLES has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Court.

**EIGHTH CAUSE OF ACTION:
NEGLIGENT SUPERVISION**

78. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

79. Defendants CITY, NYPD, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, individually and in their official capacities as employees of The City of New York and members of the NYPD, knew or should have known of the need for additional screening, training, supervising and disciplining of personnel, respectively of the NYPD.

80. Through intentional and deliberate indifference and/or a reckless disregard of basic civil rights, defendants CITY, NYPD, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JANE/JOHN DOES, failed to provide for adequate screening, training, supervising and disciplining of their personnel with respect to carrying out surveillances, utilizing confidential

informants, obtaining search and arrest warrants, and in carrying out searches and arrest so as to protect the safety and rights of the innocent public. This reckless disregard of basic constitutional rights is evidenced by decisions of the federal courts and those of the State of New York reporting that the NYPD engaged in various acts of misconduct and constitutional violation including performing stop searches upon persons not convicted of any crime, and generally, in failing to act in a constitutional capacity.

81. Defendants CITY, NYPD, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JANE/JOHN DOES, personally and/or through their authorized delegates, at all relevant times, had final, discretionary authority to promulgate and implement policies and procedures, including policies and procedures as to personnel training and supervision, with respect to the performance of duties by their personnel.

82. Defendants CITY, NYPD, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JANE/JOHN DOES, breached their duty to supervise their personnel to prevent an abuse of authority.

83. Upon information and belief, personnel employed by the NYPD have not been disciplined for their misconduct, despite repeated judicial findings of misconduct.

84. Defendants CITY, NYPD, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JANE/JOHN DOES, knew or should have known that the need for adequate screening, training, supervising and disciplining of NYPD personnel was and is compelling because of the overriding credo of these individuals to harass, humiliate, shame and embarrass members of the public, with a deliberate and total disregard for the health, welfare and safety of said persons.

85. But for the deliberate indifference of defendants CITY, NYPD, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JANE/JOHN DOES in failing to provide adequate screening, training, supervision and discipline of their personnel, the plaintiff's rights would not have been violated.

86. The aforesaid conduct operated, *inter alia*, to deprive plaintiffs of important and well-established rights under the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and rights established by the Constitution of the State of New York, including plaintiffs's right to be free from violation of one's civil rights, to be free from use of excessive force; to be free from assault and assault and battery, to be free from false arrest, wrongful detention and malicious prosecution, to be free from negligent and intentional infliction of great emotional distress, to be free from negligent and intentional wrongful acts in the performance of duties of police officers, to be free from summary punishment without trial, to be free from defamatory insults and accusations, abuse, discrimination and other acts of violence, all without due process of law, and his right to be free from cruel and unusual physical treatment.

87. As a direct and proximate result of the aforementioned unconstitutional customs, decisions, policies and/or indifferent employee training or supervision practices, plaintiff was assaulted and assaulted and battered. During all of these events, plaintiff endured substantial physical, emotional and pecuniary injuries detailed above.

88. Defendants CITY, NYPD, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JANE/JOHN DOES, are liable personally and in their official capacities for these acts which damaged plaintiffs pursuant to 42 U.S.C. § 1983.

89. Defendant CITY is liable for the wrongful acts and omissions of its agents,

servants and/or employees under the Doctrine of *Respondeat Superior*.

90. That by reason of the foregoing, plaintiff IVAN ROBLES has been caused to sustain serious personal injuries, all to their damage in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**NINTH CAUSE OF ACTION AGAINST INDIVIDUAL NYPD
DEFENDANTS FOR THEIR WRONGFUL VIOLATION
OF PLAINTIFF'S CIVIL RIGHTS UNDER COLOR OF STATE LAW**

91. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

92. Defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 assaulted plaintiff with the facilitation of various NYPD JANE/JOHN DOES.

93. Defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various DOC JANE/JOHN DOES, individually and in their official capacities as employees of The City of New York and members of the NYPD, acting within the scope of their employment and under color of state law, created, manufactured and conspired to create a policy of subjecting members of the community to violation of their civil rights.

94. Defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JANE/JOHN DOES, committed these and other acts intentionally and/or with reckless disregard to plaintiff's clearly established constitutional rights. These actions were taken despite the fact that plaintiff was completely innocent of any crime and bore no illegal possessions. No reasonable police officer would have believed that plaintiff had committed any crime.

95. Defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JANE/JOHN DOES, acting within the scope of their employment and under color of state

law, deliberately committed an assault and battery upon plaintiff and falsely detained, arrested, imprisoned and prosecuted him, among other violations of his civil rights as described herein.

96. The aforesaid conduct operated, *inter alia*, to deprive plaintiff of important and well-established rights under the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and rights established by the Constitution of the State of New York, including plaintiffs's right (a) to be free from violation of one's civil rights; (b) to be free from use of excessive force; (c) to be free from assault, and assault and battery committed under color of law; (d) to be free from false arrest, wrongful detention and malicious prosecution; (e) to be free from the intentional and negligent infliction of great emotional distress; (f) to be free from negligent and intentional wrongful acts in the performance of the duties of police officers; (g) to be free from summary punishment without trial; and (h) to be free from defamatory insults and accusations, verbal abuse, discrimination and other acts of violence that are racially motivated and/or motivated by some other illegal and/or improper purpose.

97. Defendants' behavior amounts to an exercise of power without any reasonable justification in the service of a legitimate governmental objective, and is so egregious, so outrageous, that it may fairly be said to shock the contemporary conscience.

98. Defendants acted under color of state law to violate plaintiff's substantive due process right to bodily integrity under the Fourteenth Amendment to the United States Constitution.

99. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff suffered and continues to suffer physical and psychological pain, with humiliation and mental anguish.

100. Defendants exhibited gross negligence and/or reckless and/or callous indifference to plaintiff's federally protected rights, entitling plaintiff to an award of punitive damages.

101. Each of the aforementioned defendants is liable personally and in his or her official capacities for these acts which damaged plaintiff.

102. Thus, pursuant to 42 U.S.C. § 1983, plaintiff IVAN ROBLES now demands judgment against defendants CITY, NYPD, SEHL, GREEN, KIPERVASER, JOHN DOES 1-8 and various NYPD JANE/JOHN DOES, in a sum of money exceeding the monetary jurisdictional limits of all lower courts.

**TENTH CAUSE FO ACTION:
CLAIMS PURSUANT TO 42 U.S.C. § 1983 FOR
VIOLATION OF PLAINTIFF'S CONSTITUTIONAL RIGHTS**

103. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

104. On March 21, 2016, at approximately 6:00 a.m., at the aforesaid location, defendants CITY and NYPD, by and through their agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, unlawfully and without just reason or cause and without a legally obtained warrant, right or privilege stopped, detained and arrested plaintiff IVAN ROBLES, all without his permission or consent and without just or probable cause, physically attacked and assaulted him by use of excessive force and caused him to be incarcerated and maliciously prosecuted.

105. Plaintiff IVAN ROBLES was arrested and detained without provocation or justification by their agents, servants and/or employees of defendants CITY and NYPD, and by defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD

JOHN/JANE DOES .

106. Plaintiff IVAN ROBLES was willfully and wrongfully accused of having committed a crime in violation of the Penal Laws of the State of New York.

107. Plaintiff IVAN ROBLES was brutally beaten, detained, arrested and wrongfully imprisoned against his will.

108. Said brutality, detention, arrest and imprisonment were without warrant, probable cause and/or justification.

109. The actions of defendants CITY and NYPD, their agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JOHN/JANE DOES, constitute assault, assault and battery, unlawful detention, arrest and imprisonment, and malicious prosecution and were designed to and did cause pain and suffering to plaintiff IVAN ROBLES in violation of his Constitutional Rights as are guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution of the State of New York.

110. Defendants CITY and NYPD, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JOHN/JANE DOES, violated plaintiff IVAN ROBLES's civil rights by subjecting him to excessive brutality and force and an illegal search and seizure in violation of the guarantees of 42 U.S.C. §1983, the United States Constitution, and the Constitution of the State of New York.

110. The actions of defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JOHN/JANE DOES constitute unlawful detention, arrest and imprisonment, and were designed to and did cause pain and suffering to plaintiff IVAN ROBLES in violation of

his Constitutional Rights as are guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution of the State of New York.

111. Defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JOHN/JANE DOES violated plaintiff IVAN ROBLES's civil rights by subjecting him to excessive brutality and force and an illegal search and seizure in violation of the guarantees of 42 U.S.C. §1983, the United States Constitution, and the Constitution of the State of New York.

112. That the conduct and actions of defendants CITY and NYPD, by and through their agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JOHN/JANE DOES, acting in concert and under color of State law, in beating, detaining and imprisoning plaintiff IVAN ROBLES, were done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause pain and suffering to plaintiff IVAN ROBLES in violation of his Constitutional rights as are guaranteed under 42 U.S.C. §1983, the Fourth and Fourteenth Amendments of the United States Constitution, and the Constitution of the State of New York.

113. Defendants CITY and NYPD, by and through their agents, servants and/or employees, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 and various NYPD JOHN/JANE DOES, deprived plaintiff IVAN ROBLES of his liberty in violation of his civil and constitutional rights, as are guaranteed under 42 U.S.C. §1983, and as set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

114. The actions taken by defendants CITY and NYPD, through their agents, servants

and/or employees, including, but not limited to, defendants, SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, were undertaken under color of law and would not have existed but for said defendants CITY and NYPD through their agents, servants and/or employees, use of their official power.

115. The action of defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8 , were undertaken under color of law and would not have existed but for said defendants' use of their official power.

116. As a result of the above constitutionally impermissible conduct, plaintiff IVAN ROBLES was caused to and did suffer violations of his civil rights, serious and severe personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

117. As a result of defendants' impermissible conduct, plaintiff IVAN ROBLES has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**ELEVENTH CAUSE OF ACTION:
MUNICIPAL (MONELL) LIABILITY**

118. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

119. The supervisors and policy-making officers of defendants CITY and NYPD, as a matter of standard operating procedure and policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

120. Defendants CITY and NYPD have failed to properly and effectively train their employees with regard to proper constitutional and statutory limits on the exercise of their

authority, and such failure continues to this day.

121. Defendants CITY and NYPD hired and retained in its employ certain police officers, including, but not limited to, defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, with knowledge that said police officers had vicious propensities and were otherwise unsuitable and unfit to be police officers.

122. At all times material to this Complaint, defendants CITY and NYPD had in effect *de facto* policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of defendants SEHL, GREEN, KIPERVASER and JOHN DOES 1-8, as well as other agents, servants and/or employees of the NYPD.

123. These policies, practices and customs include, *inter alia*: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the excessive use of force or in warrantless and otherwise unconstitutional searches or otherwise false arrests and impermissible imprisonments, particularly those who are repeatedly accused of such acts; the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.

124. The policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, *inter alia*, by the following:

- a. The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
- b. The fact that cases where complaints have been lodged against police officers were inadequately investigated.
- c. The fact that the decision as to whether to discipline a police officer is

taken relying primarily on police officers to conduct the investigations of alleged misconduct.

d. The fact that, upon information and belief, only a small number of police officers have been fired for brutality since 1989.

e. The fact that of the complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

125. The policymakers of defendants CITY and NYPD knew or should have known that defendant police officers were violating peoples' Constitutional rights to be free from warrantless, forcible searches in violation of their right to privacy and that said defendants were taking action that was shocking the conscience or otherwise violating the substantive due process rights of the people of the City of New York.

126. The fact that in the vast majority, if not all, of police abuse cases that result in verdicts or substantial settlements for the victims, defendants CITY and NYPD impose no discipline, either before or after the Court resolution, almost never reopen an investigation previously conducted after such a resolution; and sometimes promotes the officer to a position of greater authority despite the resolution.

127. Defendants CITY and NYPD tolerate and encourage police to lie to cover up the wrongful conduct of themselves and other officers, as evidenced by the Mollen Commission Report, July 7, 1994.

128. Upon information and belief, defendants CITY and NYPD failed to effectively screen, hire, train, supervise and discipline their police officers, including, but not limited to, the defendant police officers herein, for their propensity for violence, including excessive use of force and restraint, lack of truthfulness and for their failure to protect citizens from the unconstitutional

conduct of other police officers, thereby permitting and allowing defendant police officers herein to falsely imprison and/or excessively detain and incarcerate plaintiff IVAN ROBLES, and to otherwise cause him injury and violations of his federal and state constitutional rights, or to permit these actions to take place with their knowledge or consent.

129. Upon information and belief, defendant police officers have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, defendants CITY and NYPD on notice that defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by the plaintiff herein.

130. Upon information and belief, defendants CITY and NYPD failed to put into place and otherwise maintain an inadequate structure for risk containment and stress management relative to its police officers, *inter alia*, the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the NYPD to function at levels of significant and substantial risk to the public.

131. As a result of the foregoing conscious policies, practices, customs or usages, defendants CITY and NYPD have permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent and/or unconstitutional behavior. Such policies, practices,

customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to plaintiff IVAN ROBLES.

132. As a result of the foregoing, plaintiff IVAN ROBLES was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within their community.

133. As a result of the foregoing, plaintiff IVAN ROBLES has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

TWELFTH CAUSE OF ACTION:
Attorneys' fees pursuant to 42 U.S.C. § 1988

134. Plaintiff repeats, reiterates and re-alleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

135. That the aforementioned actions of the defendants deprived plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution by way of 42 U.S.C. §1983.

136. That the plaintiff has and will incur significant attorneys' fees in the prosecution of the above referenced claims against the defendants herein.

137. That in the event that plaintiff is successful in the prosecution of the aforesaid claims, plaintiff shall be the prevailing party within the meaning of 42 U.S.C. §1988 and shall be entitled to the recovery of said attorneys' fees from defendants.

138. As a result, defendants have become liable to plaintiff in a sum of money which exceeds the monetary jurisdictional limits of all lower courts.

STATEMENT REGARDING ARTICLE 16 OF THE C.P.L.R.:

That one or more of the exceptions set forth in Article 16 of the Civil Practice Law and Rules apply to the instant causes of action, such that defendants are jointly and severally liable with any and all other tortfeasors, whether parties to this action or not.

STATEMENT REGARDING PUNITIVE DAMAGES:

Without pleading punitive damages as a separate cause of action, plaintiff hereby puts defendants on notice that defendants' respective acts and omissions, which were a cause of the subject occurrence(s), were of such an unjustifiable, willful and wanton nature, and so incredibly deviated from accepted and proper police practices and standards, that they exhibited a gross disregard for the welfare and safety of the public at large and in particular, the plaintiff herein, such that plaintiff shall request that a judgment granting punitive damages be entered against said defendants, so as to punish said defendants and deter similar conduct on the parts of others.

WHEREFORE, plaintiff IVAN ROBLES demands that judgment be entered against the defendants herein as follows:

On the First Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Second Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Third Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Fourth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Fifth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Sixth Cause of Action:	In a sum of money exceeding the monetary

jurisdictional limits of all lower Courts;

On the Seventh Cause of Action: In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;

On the Eighth Cause of Action: In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;

On the Ninth Cause of Action: In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;

On the Tenth Cause of Action: In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;

On the Eleventh Cause of Action: In a sum of money exceeding the monetary jurisdictional limits of all lower Courts; and

On the Twelfth Cause of Action: In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;

together with interest, costs and disbursements of this action, as well as punitive damages
in an amount to be assessed by the fact-finder upon the conclusion of this action.

Yours, etc.

ALAN H. FIGMAN, PLLC

By: 

ALAN H. FIGMAN

Attorney for Plaintiff

IVAN ROBLES

Office and P.O. Address

150 Broadway, Suite 712

New York, New York 10038

212.804.5777

ATTORNEY'S VERIFICATION

ALAN H. FIGMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under penalty of perjury:

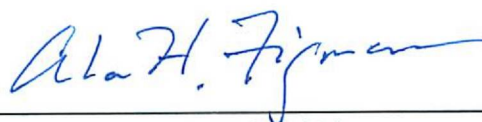
That I am member of ALAN H. FIGMAN, PLLC, attorney for the plaintiff in the within action.

That I have read the within **VERIFIED COMPLAINT** and know the contents thereof, and that the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, I believe it to be true.

That the sources of this information and knowledge are investigations and records on file.

That the reason this verification is made by deponent, and not by the plaintiff, is that the plaintiff does not reside within the County where the attorney has his office.

Dated: New York, New York
November 3, 2020



ALAN H. FIGMAN

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No.: _____

IVAN ROBLES,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O.
DONALD SEHL, Shield No. 2712, P.O. "JOHN" GREEN, first name being fictitious as it is
presently unknown, P.O. ROSTISLA KIPERVASER and P.O. "JOHN DOES 1-8", whose
names being fictitious, the true names unknown to plaintiff, the persons being NYPD
employees,**

Defendants.

SUMMONS and VERIFIED COMPLAINT

**ALAN H. FIGMAN, PLLC
Attorney for Plaintiff
Office & P.O. Address & Telephone
150 Broadway, Suite 712
New York, New York 10038
212.804.5777**